

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2024PRDE028694: IN THE MATTER OF JOSEFINA ARCINAS REBAMONTAN

09/23/2026 in Department J6

Hearing on Petition for Waiver of Accounting and Final Distribution

The court intends to: Accept the waivers of final account. Approve \$35,322.98 in statutory fees each to Petitioner and her attorney. Approve proposed distribution consistent with intestate succession. (Probate Code §6402)

In order for the Court to determine whether extraordinary legal fees are warranted, the Court reviews whether ordinary fees sufficiently compensate counsel for all of his services. (*Estate of Hilton* (1996) 44 Cal.App.4th 890, 914.) Accordingly, counsel must file separate billing statements for ordinary services and for extraordinary services if he desires the Court to consider his request for extraordinary legal fees.

As the attorney has not filed a declaration in support of the extraordinary fees that complies with CRC 7.702 and the separate billing statements for the ordinary services, the court intends to deny the request for extraordinary attorney fees.